Settlement Agreement

This agreement is dated 3 June 2020

Between

(1) **Nicola Maxine Johnson** of Warwick House, 8 Addison Crescent, London, W14 8JP (**Ms Johnson**); and

(2) **Barclays Bank PLC**, a company incorporated in England with company number 09740322 and whose registered office is at 1 Churchill Place, London, England, E14 5HP (the **Bank**);

together the **Parties**.

Recitals

A A dispute has arisen between the Parties relating to a loan entered into between the Bank and Warwick Estates Limited (**WEL**) on 2 February 2009 by which the Bank advanced £6,000,000 to WEL (the **Loan**) and upon which interest has accrued.

B The Loan is secured by way of a first legal charge dated 2 February 2009 (the **Security**) over the property at Warwick House, 8 Addison Crescent, London, W14 8JP (title number: BGL25559) (the **Property**).

C Ms Johnson claims that she was unaware of the Loan or the Security at the time of the advance of the Loan by the Bank. On that basis, she denies the validity of the Security (the **Dispute**).

D In matrimonial proceedings in England between Ms Johnson and her former husband, Ziad Mounir Takieddine, by order dated 16 September 2016 (the **2016 Order**), Ms Johnson was granted sole conduct of the sale of the Property with the Court directing how the proceeds of sale be distributed following the discharge of the Loan in the 2016 Order and a further order dated 27 November 2017 (the **2017 Order**) (together the **Orders**).

E Ms Johnson has secured a buyer (Mr Brian May) for the Property and wishes it to be sold to Mr May for £12,000,000 (twelve million pounds). The parties have agreed that the Property will be sold to Mr May for £12,000,000 (12 million pounds) by the Bank exercising its power of sale under the Security.

F The Parties wish fully and finally to settle the Dispute on the terms set out in this agreement (the **Agreement**).

IT IS HEREBY AGREED as follows:

1 Definitions and Interpretation

1.1 The headings in this Agreement are for ease of reference only and shall not affect its construction or interpretation.

1.2 Reference to the Parties to this Agreement shall include their successors in title and permitted assigns.

1.3 The Parties adopt the terms defined in the recitals above.

1.4 In this Agreement, unless the context otherwise requires, **Barclays Group** means the Bank and each of its holding companies and subsidiaries and each subsidiary of each of its holding companies.

2 Payment and Release of Security

2.1 Upon completion of the sale of the Property, the Bank will release the Security upon payment to it from the sale proceeds on the sale of the Property of the sum of £6,000,000.00 (six million pounds) (the **Settlement Sum**) and its reasonable legal costs incurred since 23 March 2020.

3 Release

3.1 The Parties agree that the Settlement Sum is accepted by the Bank in full and final settlement and release of all and any claims, complaints, rights and remedies of any kind that Ms Johnson has or may have against the Bank and/or the Barclays Group, its assigns, transferees, affiliates, representatives, principals, agents, officers, directors and employees, whether direct or indirect, actual or contingent, past or present, foreseen or unforeseen, known or unknown, whether or not contemplated at the date of this Deed, including in connection with, arising out of or otherwise relating in any way to the Property, the Security, the Loan, the Dispute and any other advances made or security taken by the Bank and/or the Barclays Group to WEL, SCI Lamartine, Mr Takieddine or Ms Johnson.

3.2 Nothing in this Agreement shall be construed as an agreement by the Bank to release WEL from any outstanding liabilities it owes to it.

4 Distribution on Net Sale Proceeds

4.1 Following payment to the Bank of the Settlement Sum and its reasonable legal costs incurred since 23 March 2020, the balance of the proceeds of sale of the Property (the **Balance**) will forthwith be paid to the client account of Ms Johnson's solicitors, Withers LLP, Account Number 80250020 Sort Code 15-99-00 quoting reference LN67878.10.

4.2 Ms Johnson undertakes with the Bank that the Balance will then be distributed as set out in the schedule to this Agreement so as to accord with section 105 of the Law of Property Act 1925, the Orders and to reflect respective priorities of entries on the Land Registry title of the Property.

5 Costs

5.1 Save as provided in clause 2.1 hereof, the Parties shall each bear their own costs incurred in connection with the Dispute and the preparation of this Agreement.

6 Agreement Not to Bring Further Action

6.1 Each party agrees not to sue, commence, voluntarily aid in any way, encourage, prosecute or cause to be commenced or prosecuted against the other party any action, suit, complaint or other proceeding concerning the Dispute, in this jurisdiction or any other.

6.2 This clause shall not include, any claims in respect of any breach of this Agreement.

7 Confidentiality

7.1 The terms of this Agreement and the substance of all negotiations in connection with it are and shall remain confidential to the Parties and their advisers, who shall not disclose or otherwise communicate them to any third party without the written consent of the other parties other than:

7.1.1 to the Parties' respective auditors, insurers, accountants, lenders and lawyers on terms which preserve confidentiality;

7.1.2 pursuant to an order of a court of competent jurisdiction, or pursuant to any proper order or demand made by any competent authority or body where a Party is under a legal and/or regulatory obligation to make such a disclosure;

7.1.3 to the extent required to be included in any Party's published accounts; and/or

7.1.4 insofar as necessary to implement and/or enforce any of the terms of this Agreement.

8 Effect of this Agreement

8.1 The parties hereby agree that this Agreement shall immediately be fully and effectively binding on them.

9 No Admission

9.1 No party admits any claim, allegation, liability or wrongdoing relating to the Dispute. Nothing in this Agreement should be taken as such an admission.

10 Entire Agreement

10.1 This Agreement constitutes the entire agreement and understanding of the Parties and supersedes any previous agreement or understanding between the Parties with respect to the arrangements contemplated by or referred to in them.

10.2 The only claim, right or remedy available to a Party in respect of a representation expressly set out in this Agreement shall be damages for breach of contract.

10.3 Save as set out in clause 7 of this Agreement, each Party waives all claims, rights and remedies for all representations:

10.3.1 made to it by any person before entering into this Agreement; and

10.3.2 not set out in this Agreement.

10.4 Each Party acknowledges that, in deciding to enter into this Agreement, it has not relied on any such representation.

10.5 This clause does not exclude or restrict liability for fraudulent misrepresentation or fraudulent concealment.

11 Severability

11.1 If any provision of this Agreement is found to be void or unenforceable, that provision shall be deemed to be deleted from this Agreement and the remaining provisions of this Agreement

shall continue in full force and effect and the Parties shall use their respective reasonable endeavours to procure that any such provision is replaced by a provision which is valid and enforceable, and which gives effect to the intent of this Agreement.

12 Governing Law and Jurisdiction

12.1 This Agreement shall be governed by, construed and take effect in accordance with English law. The Parties submit to the exclusive jurisdiction of the English courts for the purpose of any action to enforce the terms of this Agreement.

13 Contracts (Rights of Third Parties) Act 1999

13.1 The parties agree that the terms of this Agreement are not enforceable by any third party under the Contracts (Rights of Third Parties) Act 1999.

Schedule

1. The Balance will be distributed as follows

1.1. Withers' conveyancing costs (para 7(f)(ii) of the 2016 Order)

1.2. Thereafter 50% to Ms Johnson (para 7(f)(iv) of the 2016 Order)

1.3. As to the remaining 50%

a) 7,500 euros, £3,205.47, £16,434 and £648 to Ms Johnson (para 7(f)(iv) 1-4 of the 2016 Order);

b) £48,508.50 and interest of £9,357.66 to 27 April 2020 to Ms Johnson with daily interest thereafter of £10.63 (para 15 of the 2017 Order);

c) £1,643,224 and interest of £249,070.08 to 27 April 2020 and daily interest thereafter of £277.98 to Ms Johnson/Withers LLP (para 7(f)(iv) 5-6 of the 2016 Order and para 9 of the 2017 Order);

d) £69,670.26 and £30,224.40 and interest of £19,027.20 to 27 April 2020 and daily interest thereafter of £21.89 to Ms Johnson (para 17 b and c of the 2017 Order);

e) £3,546,717.69 and interest of £683,299.44 to 27 April 2020 and daily interest thereafter of £777.36 to Ms Johnson (para 13 of the 2017 Order)

The total of the sums in a) to e) exceed the said remaining 50%.

2. It is recorded that Ms Johnson has three charging orders in her favour

a) in the amount of £373,359.02 as at 27 April 2020 (with a daily rate of interest thereafter of £49.61) (entry C6 on the title of the Property). The final charging order is dated 29 January 2014 in action number FD10F00562;

b) in the amount of £774,441.61 as at 27 April 2020 (with a daily rate of interest thereafter of £114.46) (entries B4 and B5 on the title of the Property). The final charging order is dated 11 April 2014 in action number A10CL014 which arose out of action number HC10C02686;

c) in the amount of £4,230,017.13 as at 27 April 2020 (with a daily rate of interest thereafter of £777.36) (entry C7 on the title of the Property). The final charging order is dated 27 November 2017 in action number FD14F00385.

The sums secured by the charging orders in Ms Johnson's favour are all included in the amounts referred to in paragraph 1.3 of this Schedule and the total of them exceed the said remaining 50% referred to in paragraph 1.3.

3. There are entries on the title of the Property in favour of Moss Fallon Solicitors (entry B7) and Payne Hicks Beach (entry B8) and the following is recorded:

a) Ms Johnson assigned part of the financial provision awarded to her in the matrimonial proceedings to Moss Fallon Solicitors to whom is due the sum of £96,086.14 as at 14 March 2020 and daily interest of £13.03 from 15 March 2020, which sum Ms Johnson will discharge from the sum paid to her under paragraph 1.2 of this Schedule;

b) Payne Hicks Beach have a charging order against the interest of Mr Takieddine in the Property. As recorded in letters between Withers LLP and Payne Hick Beach dated 14 February 2020 and 3 April 2020, Payne Hicks Beach accept that there are insufficient proceeds of sale to satisfy any part of the sum secured by their charging order.

SIGNED by

NICOLA JOHNSON

N Johnson 3 June 2020

SIGNED for and on behalf of

BARCLAYS BANK PLC